Reliance Nippon Life Insurance Company ... vs Usha Rani on 7 November, 2025

d
v
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IN THE NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION

NEW DELHI

RESERVED ON : 27.08.2025
PRONOUNCED ON : 07.11.2025

SECOND APPEAL NO. 75 OF 2025
(From the order dated 28.10.2024 in Appeal No. 62of2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited — Appellant
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-40005^,

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC MIG Road, Sector 16, Gurugram, Haryana-122001

Versus

Rattan Chauhan — Respondent
s/o Sh. Ram Chander
r/o H.No.1268, Sector 10
Panchkula (HR)-134113

SECOND APPEAL NO. 76 OF 2025
(From the order dated 28.10.2024 in Appeal No. 63 of 2024 ofthe

State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited — Appellant

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Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

. Both through their authorized representative

Mr. Arihdam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Rattan Chauhan — Respondent
s/o Sh. Ram Chander
r/o H.No.1268, Sector 10
Panchkula (HR)-134113

SECOND APPEAL NO. 77 OF 2025
(From the order dated 28.10.2024 in Appeal No. 19 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited — Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H. No. 540, Sector-7, Panchkula-134108
Haryana

SECOND APPEAL NO. 81 OF 2025
(From the order dated 28.10.2024 in Appeal No. 56 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Uran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)-160043

SECOND APPEAL NO. 82 OF 2025
(From the order dated 28.10.2024 in Appeal No. 55 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant

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Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Puran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)-160043

SECOND APPEAL NO. 83 OF 2025
(From the order dated 28.10.2024 in Appeal No. 68 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001
SA/75/2025 & Connected SAs Page 4 of37
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Versus

Mandeep Kaur Respondent
d/o Late Sh. Swarn Singh
r/o H.No. 1614, Sector 49-D, Chandigarh (UT)-160047

SECOND APPEAL NO. 84 OF 2025
(From the order dated 28.10.2024 in Appeal No. 64 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Ashwani Kumar Respondent
s/o Late Sh. Gian Chand
r/o H.No.A-6, Sector 125, Palm Height
New Sunny Enclave, Mohali-160055 (Punjab)

SECOND APPEAL NO. 85 OF 2025
(From the order dated 28.10.2024 in Appeal No. 251 of 2023 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant

H Block, 1st Floor, Dhiru Bhai Ambani Knowledges

City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no. 145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Saroj Goel Respondent
s/o Sh. Vijay Goel
r/o H.No. 1155, Sector?
Panchkula-134108
Haryana

SECOND APPEAL NO. 86 OF 2025
(From the order dated 28.10.2024 in Appeal No. 65 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Ashwani Kumar Respondent
s/o Late Sh. Gian Chand
r/o H. No.A-6, Sector 125
Palm Height, New Sunny Enclave
Mohali-160055 (Punjab)

SECOND APPEAL NO. 88 OF 2025
(From the order dated 28.10.2024 in Appeal No. 57 of 2024 of the
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No. 122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Puran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)-160043

SECOND APPEAL NO. 89 OF 2025
(From the order dated 28.10.2024 in Appeal No. 60 of 2024 of the
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited

SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Puran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)-160043

SECOND APPEAL NO. 90 OF 2025
(From the order dated 30.10.2024 in Appeal No. 253 of 2023 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Saroj Goel Respondent
s/o Sh. Vij^y Goel
r/o H.No. 1155, Sector?
Panchkula-134109
Haryana

SECOND APPEAL NO, 91 OF 2025
(From the order dated 28.10.2024 in Appeal No. 61 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC MIG Road, Sector 16, Gurugram, Haryana-122001

Versus

Ratan Chauhan Respondent
s/o Sh. Ram Chander
r/o H.No.1268, Sector 10, Panchkula, Haryana-134113

SECOND APPEAL NO. 92 OF 2025
(From the order dated 30.10.2024 in Appeal No. 252 of 2023 of the
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited

H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001
Versus

Saroj Goel Respondent

s/o Sh. Vijay Goel
r/o H.No. 1155, Sector?
Panchkula-134109
Haryana

SECOND APPEAL NO. 93 OF 2025
(From the order dated 29.10.2024 in Appeal No. 24 of 2024 of the
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited ... Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

SA/75/2025 & Connected SAs Page 10 of 37

Versus

Vijay Gopal ... Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SECOND APPEAL NO. 94 OF 2025
(From the order dated 29.10.2024 in Appeal No. 23 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited ... Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SECOND APPEAL NO. 95 OF 2025
(From the order dated 28.10.2024 in Appeal No. 59 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Puran Ram
r/o 29/2, Kajheri, Chandigarh (UT)-160043

SECOND APPEAL NO. 96 OF 2025
(From the order dated 28.10.2024 in Appeal No. 66 of 2024 of the
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited

Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDO M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Usha Rani Respondent
w/o Sh.Gian Chand

SA/75/2025 & Connected SAs Page 12 of 37
s/oSh. Puran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)

SECOND APPEAL NO. 97 OF 2025
(From the order dated 28.10.2024 in Appeal No. 69 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Ms.Avneet Kaur Respondent
d/p Late Sh.Swarn Singh
r/o H.No.1614, Sector 49-D, Chandigarh-160047

SECOND APPEAL NO. 99 OF 2025
(From the order dated 29.10.2024 in Appeal No. 19 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SECOND APPEAL NO. 100 OF 2025
(From the order dated 29.10.2024 in Appeal No. 22 of 2024 of the State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDO M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SA/75/2025 & Connected SAs Page 14 of 37

SECOND APPEAL NO. 101 OF 2025
(From the order dated 29.10.2024 in Appeal No. 20 of 2024 ofthe State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SECOND APPEAL NO. 102 OF 2025
(From the order dated 28.10.2024 in Appeal No. 67 of 2024 ofthe State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Company Limited Appellant
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No.122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Bal Krishan Sharma Respondent
r/o Flat No. 5078/3, Housing Complex Manimajra
Chandigarh-160101

SECOND APPEAL NO. 103 OF 2025
(From the order dated 29.10.2024 in Appeal No. 21 of 2024 ofthe
State Consumer Disputes Redressal Commission UT Chandigarh)

1. Reliance Nippon Life Insurance Appellant
Company Limited
H Block, 1st Floor, Dhiru Bhai Ambani Knowledges
City Centre, Navi Mumbai, Maharashtra-400710

2. Reliance Nippon Life Insurance Company Limited
SCO no.145-146, Sector 9-C, Chandigarh

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDO M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Vijay Gopal Respondent
r/o H.No.540, Sector-7
Panchkula-134108, Haryana

SECOND APPEAL NO. 106 OF 2025
(From the order dated 29.10.2024 in Appeal No. 58 of 2024 ofthe

State Consumer Disputes Redressal Commission UT Chandigarh)

SA/75/2025 & Connected SAs Page 16 of 37

1. Reliance Nippon Life Insurance Company Limited Appellant
Unit No.401 B, 402,403 and 4040 4th Floor
Inspire BKC,G Block, BKC
Main Road, Bandra Kural Complex, Bandra East, Mumbai-400051

2. Reliance Nippon Life Insurance Company Limited
SCO No. 122-123, 2nd Floor
Sector 17-C, Chandigarh-160017

Both through their authorized representative

Mr. Arindam Mishra

Office at

2nd Floor, G S Furniture LLP
91, IDC M G Road, Sector 16, Gurugram, Haryana-122001

Versus

Gian Chand Respondent
s/o Sh. Puran Ram
r/o H.No.29/2, Kajheri, Chandigarh (UT)-160043

BEFORE:
HON'BLE DR. INDER JIT SINGH, PRESIDING MEMBER
HON'BLE DR. JUSTICE SUDHIR KUMAR JAIN, MEMBER

For the Appellant (s) : Mr. Varun Bedi, Advocate (through VC)
(in all SAs)

For the Respondent (s) : Mr. Sunil Ojha, Advocate (through VC)
(in SA No. 75, 76 and 91 of 2025

Mr. Deepak Aggarwal, Advocate (through VC)
(Sr. No.81,82, 88, 89, 95, 96 & 106 of 2025)

Mr. Sunil Bhardwaj, Advocate (through VC)
(SI. No.83, 84, 86, 97 and 102 of 2025)

None for others

DR.INDER JIT SINGH, PRESIDING MEMBER

ORDER

1. These Second Appeals (SAs) have been filed by the Appellant against Respondents as detailed above, under section 51 (2) of Consumer Protection Act 2019, against the common order dated 28.10.2024, 29.10.2024 and 30.10.2024 of the State Consumer Disputes Redressal Commission U.T.Chandigarh (hereinafter referred to as the 'State Commission'), inter alia praying for setting aside the order(s) of the State Commission.

2. Notice was issued to the Respondent(s) on 01.04.2025. Parties also filed their Written Arguments / Synopsis.

3. As issues / law points and opposite parties involved are the same in these FA(s), these are taken up together, with SA No. 75 of 2025 as lead case . This corresponds to FA No. 62 of 2024 before the State Commission and CC No. 776 of 2021 before the District Commission. For sake of convenience, parties will also be referred to as they were arrayed before District Forum. Delay in filing the SAs was condoned vide this Commission's order dated 27.08.2025.

4. Brief facts of the case, as presented by the Complainant and as emerged from the SA (SA No. 75 of 2025), Order of the State Commission, Order of the District Commission and other case records are that in 2016, the complainant was approached by agents of the opposite parties with the investment scheme saying that it will yield high profits. Being allured, policy namely "Reliance Nippon Life Fixed Saving Increasing Income Plan" was issued by collecting premium of Rs.3,99,999.82. It was assured to the complainant that amount paid in the shape of premium shall be invested like an FD and only three years premium have to be paid. It is further the case of the complainant that when complainant received a notice of renewal premium of the policy, he came to know that infact the agents of the OP had mis-sold the policy as the said notice indicated policy terms of 24 years and the annual premium of Rs.3,99,999.82 was payable for 12 years. The complainant alleged that the opposite parties deliberately misled him to obtain money, despite his age, knowing he could not wait such a long period for the amount which was invested by him under the impression that same will be refunded to him after three years. The complainant requested for refund of the money so deposited but to no avail. Being aggrieved, the Complainant filed CC before the District Commission and the District Commission vide common order dated 06.10:2023 partly allowed the CCs filed by the Complainants. Being aggrieved, the OP filed an Appeal before the State Commission and State Commission vide common orders dated 28.10.2024, dismissed the appeal.

Therefore, the Appellant is before this Commission now in the present SA(s).

5. Appellant has challenged the Order of the State Commission mainly on following grounds:

> (i) State Commission ignored critical documentary evidence provided by the appellant including the policy terms and proposal form signed by respondent / complainant. The complainant acceptance of the terms and conditions establishes that he was fully aware of the policy details, including the tenure and premium obligations.

(ii) State Commission misinterpreted the policy contract, which clearly outlined the tenure and premium payment schedule. The complainant cannot claim ignorance of these terms after signing the proposal form and receiving the policy documents.

(iii) State Commission failed to appreciate that policy was sold based on the complainant representations. The allegation of mis-selling was unsupported by evidence.

(iv) Complainant failed to exercise his right to free look period which allowed him to review the policy and raise objections within the stipulated timeframe. The complainant by signing the proposal form and failing to invoke the free-look period , unequivocally expressed consent to the policy's terms.

(v) District Commission lost sight of the fact that surrender benefits is also mentioned in the policy document and the amount if any, the same is strictly payable as per terms and conditions of the policy.

(vi) The State Commission did not appreciate the law laid down by National Commission in Tarsem Singh Vs. PNB Metlife India Insurance Co. Ltd. 2016 (3) CPR 757.

(vii) State Commission failed to appreciate that policy in question was duly received by the complainant and .if he was not satisfied with the terms and conditions of the policy, then he could have opted for cancellation of the same as per Section 6(2) of the Insurance Regulatory and Development Authority Regulations 2002, wherein insured can avail free look cancellation or modifications within 15 days of the receipt of policy document. Reliance has been placed on the order of this Commission in Norbert Shaba Rego s/oLate Sh. Shaba Antony REgo Vs. Birla Sun Life Ins. Co.

ltd. and Anr. 2018 (4) CPJ 316, Devraj Kishore Dass Vs Reliance Life lns.218 (3) CPJ 518, Mohan Lal Benal Vs. ICICI Prudential Life Ins. Co. Ltd. 2012 (4) CPJ 690, Aviva Life Ins. Co. Ltd. Vs. Helly Sharma 2014 (1) CPR 593.

(viii) State Commission wrongly accepted that policy was signed on dotted lines without proper understanding. The complainant voluntarily signed the proposal form and accepted the terms, which were clearly communicated.

(ix) The State Commission disregarded the established legal principles that bind the parties to the terms of contract. (X) Appellant acted within the terms of contract and policy explicitly stated that refunds would occur only under Specific circumstances, which State Commission overlooked.

(xi) Reliance has also been placed on the judgment of the Hon'ble Supreme Court and National Commission in Export Credit Guarantee Corporation of India Vs. Garg Sons International (2014) 1 SCC 686, Vikram Greentech (I) Ltd. and Anr. Vs. New India Assurance Co. Ltd. 2009 (4) CLT 313, Deokar Exports Pvt. Ltd. Vs. New India Assurance Co. Ltd. 2009 (2) CLT 15, LIC of India and Ors. Vs. Mahendra Singh 2011 (4) CLT 39.

6. Details of 25 SAs covered in this order and their corresponding FAs number before State Commission, date of State Commission's order and District Forum's order, CC number and name of the Complainant before the District Commission are given in the Table at Annexure-A.

7. These 25 SAs challenge the following orders of the State Commission:

> (i) Order dated 28.10.2024 in which 15 First Appeals were disposed of vide common order;
>
> (ii) Order dated 29.10.2024 in which 7 First Appeals of same Respondent Vijay Gopal were decided; and
>
> (iii) Order dated 30.10.2024 with respect to 3 First Appeals of Respondent Saroj Goel.

In the common order dated 28.10.2025 of 15 First Appeals, the Respondent Gian Chand had 6 First Appeals, Respondent Ashwani Kumar had two First Appeals and Respondent Rattan Chauhan had 3 First Appeals. Others have one First Appeal each.

8. During the hearing on 27.08.2025, learned Counsel for the Appellant raised following main contentions:

> (i) The parties cannot counter a written contract with oral evidence as per Section 92 of the Evidence Act;
>
> (ii) They are not consumers as they have bought investment plan and not an insurance policy;
>
> (iii) They did not act within the free lookout period under the policy;
>
> (iv) They are entitled to surrender benefit only subject to fulfillment of the conditions of the policy, which has a minimum two years period before they become entitled to surrender value.

9. Learned Counsel for the Respondents, on the other hand, contended that the policies in question were sold to them under misrepresentation by the agent of the Appellant Insurance Company and they were told that only a one time premium is to be paid, the policy/plan will have only a three years' maturity period and it is a more like an FD although not exactly an FD and after the maturity period, they will be paid the entire amount with interest. It is further contended that many of the Respondents are senior citizens, some of them aged above 70 years and retired and they could not have afforded to pay such an annual premium for a period of 10 to 12 years and, therefore, question

of agreeing for such a long period plan does not arise. In some of the cases, the annual premium is as high as ?3.99 Lakhs and ?2.50 Lakhs etc. Some of the Respondents are even students who presently may not have income source to pay such high annual premium. It was also contended by some of the Respondents that they did not even get copy of the policy immediately or within the free lookout period but after a delay of 3 to 4 months. It is also contended that some of the Complainants were made to sign blank papers. Further, as per the policy, the surrender value is only about 33% of the premium paid and there is no reason for such senior citizens to agree for such terms and conditions of the policy. Hence, the policies/plans in question were misrepresented to them. It is also argued that no prudent person at the age of more than 60 years will buy such a product having maturity period of 24 years and/or premium period of 12 years. Learned Counsel(s) representing the Respondents supported the orders of the State Commission/District Forum and submitted that these should be upheld.

10. State Commission has duly addressed the contentions raised by both sides before it. Extract of relevant paras of the State Commission in its order dated 28.10.2024 is reproduced below:

> 10. Counsel for the appellants, in all these cases, has vehemently contended that that because the respondents have failed to avail option of free look period from the date of receipt of the respective policies, now they are not entitled to refund of the premiums paid and on the other hand are entitled to get surrender value of their respective policies. He further submitted that the respondents cannot wriggle out of the terms and conditions of the policies and declarations signed by them but the same stood ignored by the District Commission. He further submitted that at no point of time, the respondents raised any complaint with the appellants qua the policies issued to them.
>
> 11. On the other hand, counsel for the respondents vehermently contended that the policies in question were mis-sold by the agent of appellants to the respondents qua term of payment of premiums and policy term. He further submitted that though it was assured to the respondents by the agents of the appellants that the amount paid in the shape of premium will be invested like an FD and only three years' premium have to be paid, yet, later on, it was found that they have been sold the policies with a long policy terms ranging upto 24 years and also the annual premium payable were also fixed for long years ranging upto 10 years, knowing fully well that the some of the respondents were senior citizens and students, even at the time of issuance of the subject policy and neither they were in capacity to pay premiums nor they would have waited for such a long period. Hence, consumer complaints were filed before the District Commission.
>
> 12. It may be stated here that perusal of the insurance policies placed on record establish that the same have been sold to the respondents, many of whom are senior citizens and other persons, without due consideration of their age and financial status, raising serious ethical and legal concerns. Even in some cases, the policies have been sold to the students, without considering their payment capacity of

premiums. The insurance company, whose primary responsibility is to offer appropriate and tailored financial products, neglected to properly assess the needs and circumstances of the insured individual. In these cases, not only many of the insured persons were senior citizens, but most of them like students etc. are in a vulnerable financial position, making them particularly susceptible to the risks associated with an unsuitable policy. The insurance company failed to exercise the necessary duty of care by not evaluating whether the product was suitable for the respondents or not. Selling an insurance product without taking into account the client's age, financial status etc. can lead to several problems, such as over-insurance, under-insurance, or the inability to claim benefits when needed.

Especially for senior citizens and persons with financial difficulties/students, whose financial resources may be limited and whose (senior citizens) health might be declining, the consequences of an inappropriate insurance policy can be even more severe, potentially depleting savings or failing to provide adequate coverage when it is most needed. This mis-selling practice not only undermines consumer trust in the insurance industry but also exposes the insured to significant financial strain.

13. Thus, in view of peculiar facts and circumstances of these cases, it is held that the policies in question were issued by the appellants to the respondents without a clear understanding of the terms, and rather the same were presented in a misleading and obscured manner, which cannot be enforced against the consumers. If an insurance company fails to adequately explain the terms or presents them in a deceptive manner, the contract may be deemed unenforceable. The District Commission was thus right in directing refund of the respective amounts paid by the respondents in respect of the policies in question.

14. It is therefore held that the orders dated 06.10.2023 passed by the District Commission-1, U.T., Chandigarh, in all the consumer complaints, referred to above, being based on the correct appreciation of evidence and law on the point, does not suffer from any illegality or perversity, warranting the interference of this Commission.

11. Similar orders have been passed by State Commission on 29.10.2024 and 30J0.2024 in other cases, extract of relevant paras of which are reproduced below :

Order dated 29.10.2024

14. Counsel for the Appellants / Opposite Parties vehemently contended that the Ld. District Commission failed to pass any convincing findings in the order impugned and it has reiterated the findings given by it in the earlier order dated 05.04.2023. He further submitted that the Respondent/Complainant has failed to avail option of free look period from the date of receipt of the respective policies. He submitted that the Respondent/Complainant cannot wriggle out of the terms & conditions of the policies and declarations signed by him, but the same stood ignored by the Ld. District Commission. He further submitted that the Respondent/Complainant is entitled to get refund of amount, if any, strictly as per terms & conditions of the respective

policies.

15. Per contra, Counsel for the Learned Respondent/ Complainant argued that the policies in question were mis-sold by the agent of Appellants/Opposite Parties to the Respondent/Complainant. He further submitted that the Respondent/ Complainant was made to believe that the he will pay fixed regular additions (percentage of annualized premium) @ 8% for the first year, @9% for the second year and 10% for the third year onwards, which are key features of the "Reliance Nippon Life Fixed Saving Policy" and that the said policy was to be issued for five years, which could be surrendered after three years with fixed regular additions, which was not true, because later on they were asked to make payment of premium, upto 10 years and policy terms was 12 years, without the taking into account insured's age, financial limits etc., leading to several problems, qua inability to claim benefits when needed. He further submitted that even the terms & conditions mentioned in the proposal form and also policies were in dotted lines.

16. It may be stated here that perusal of the insurance policies placed on record reveal that the contents thereof are in a very small size of letters & blur i.e. in dotted lines and are not legible. In various legal contexts, the Hon'ble Supreme Court has clarified that dotted lines or signature lines in the policies can carry specific implications. Generally, the principle is that if a document is not fully executed or if a party did not have the opportunity to understand or agree to its terms, those terms may not be binding on that party. For instance, if an insured did fully understand the implications of a policy or if key provisions were not clearly communicated, the court may hold that person not those provisions are unenforceable. This underscores the importance of transparency and clear communication in insurance contracts. It was so said by the Hon'ble Supreme Court in Civil Appeal No. 8249 of 2022 titled as "M/s Texco Marketing Pvt. Ltd.

Versus TATA AIG General Insurance Company Ltd. & Ors, wherein it was clearly held that the insurance contracts got signed by the insured on dotted lines, are not binding upon the insured. Relevant part of the said order is reproduced hereinunder:

xxxx

17. It is observed that several susceptible consumers having different backgrounds and residing at different parts of the country are making similar allegations that the representatives/agents of the insurance companies are not disclosing the actual terms & conditions of the insurance policies, but sell out the same in an illusory & deceptive manner. This oversight left the insured vulnerable to the risks associated with a policy that was not suitable for their specific situation. To our mind, this practice exposes the insured to significant financial sprain. In this backdrop, it is held that the policies in question got signed under pressure and without proper understanding i.e. on "dotted Lines"

are not binding upon the Respondent/ Complainant.

18. Record shows that the subject insurance policies have been sold Respondent/Complainant (who is senior citizen), without due consideration of the age Financial status, and raising serious ethical and legal concerns. Importantly, under the subject policies the Respondent/ Complainant was to pay the premium till he r attains the age of 90 years. The insurance company, whose primary responsibility is to offer appropriate and tailored financial products, neglected to properly assess the needs and circumstances of the Insured Individual:

19. The Ld. District Commission while reiterating the observations passed by the Hon'ble Apex Court, has held that it is usual with the Insurance companies to show all types of green pastures to the customers at the time of selling Insurance policies, and when it comes to payment of the insurance claim, they invent all sort of excuses to deny the valid claims. The Hon'ble Apex Court even observed that the 'take it or leave it attitude is clearly unwarranted not only as being bad in law, but ethically Indefensible. It is generally seen that the Insurance companies are only interested in earning the premiums and find ways and means to decline claims.

20. In the present bunch of cases, the insured person (Respondent/Complainant) was senior citizen and as per facts borne on record, the Respondent/Complainant is in a vulnerable financial position, making a case of susceptible to the risks associated with an unsuitable policies. The Appellants/ Opposite Parties failed to exercise the necessary duty of care by not evaluating whether the product was suitable for the Respondent/Complainant or not. Selling an insurance product without taking into account the client's age etc. can lead to several problems, such as over-insurance, under-insurance, or the inability to claim benefits when needed. Especially for senior citizens and persons with financial difficulties, whose financial resources may be limited and whose health might be declining, the consequences of an inappropriate insurance policy can be i. even more severe, potentially depleting savings or failing to provide adequate coverage when it is most needed.

21. Notably, the aforesaid mis-selling practice not only h undermines consumer trust in the insurance industry but also exposes the insured to significant financial strain. Senior citizens, who often have a limited income, should be carefully guided through the process, with transparency about what policies offer and how they align with their needs. In the present cases, the insurer's failure to consider the specific age and Financial status of the Insured/respondent, shows a blatant disregard for ethical sales practices. The Ld. District Commission has very carefully observed that the Appellants/Opposite Parties mis-sold the subject policies and held the Appellants/ Opposite Parties liable to refund the deposited amount, along with compensation and costs of litigation. No case is therefore made for any interference in the well reasoned findings recorded by the Ld. District Commission.

Order dated 30.10.2024

14. Counsel for the Appellants / Opposite Parties vehemently contended that the Ld. District Commission failed to pass any convincing findings in the order impugned and it has reiterated the findings given by it in the earlier order dated 05.04.2023. He further submitted that the Respondent/Complainant has failed to avail option of free look period from the date of receipt of the respective policies. He submitted that the Respondent/Complainant cannot wriggle out of the terms & conditions of the policies and declarations signed by her, but the same stood ignored by the Ld. District Commission. He further submitted that the Respondent/Complainant is entitled to get refund of amount, if any, strictly as per terms & conditions of the respective policies.

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are not binding upon the Respondent/ Complainant.

18. Record shows that the subject insurance policies have been sold Respondent/Complainant (who is senior citizen), without due consideration of the age Financial status, and raising serious ethical and legal concerns. Importantly, under the subject policies the Respondent/ Complainant was to pay the premium till she attains the age of 95 years. The insurance company, whose primary responsibility is to offer appropriate and tailored financial products, neglected to properly assess the needs and circumstances of the Insured Individual.

19. The Ld. District Commission while reiterating the observations passed by the Hon'ble Apex Court, has held that it is usual with the Insurance companies to show all types of green pastures to the customers at the time of selling Insurance policies, and when it comes to payment of the insurance claim, they invent all sort of excuses to deny the valid claims. The Hon'ble Apex Court even observed that the 'take it or leave it attitude is clearly unwarranted not only as being bad in law, but ethically Indefensible. It is generally seen that the Insurance companies are only interested in earning the premiums and find ways and means to decline claims.

20. In the present bunch of cases, the insured person (Respondent/Complainant) was senior citizen and as per facts borne on record, the Respondent/Complainant is in a vulnerable financial position, making a case of susceptible to the risks associated with an unsuitable policies. The Appellants/ Opposite Parties failed to exercise the necessary duty of care by not evaluating whether the product was suitable for the Respondent/Complainant or not. Selling an insurance product without taking into account the client's age etc. can lead to several problems, such as over-insurance, under-insurance, or the inability to claim benefits when needed. Especially for senior citizens and persons with financial difficulties, whose financial resources may be limited and whose health might be declining, the consequences of an inappropriate insurance policy can be even more severe, potentially depleting savings or failing to provide adequate coverage when it is most needed.

21. Notably, the aforesaid mis-selling practice not only undermines consumer trust in the insurance industry but also exposes the insured to significant financial strain. Senior citizens, who often have a limited income, should be carefully guided through the process, with transparency about what policies offer and how they align with their needs. In the present cases, the insurer's failure to consider the specific age and Financial status of the Insured/respondent, shows a blatant disregard for ethical sates practices. The Ld. District Commission has very carefully observed that the

Appellants/Opposite Parties mis-sold the subject policies and held the Appellants/ Opposite Parties liable to refund the deposited amount, along with compensation and costs of litigation. No case is therefore made for any interference in the well reasoned findings recorded by the Ld. District Commission.

12. The scope of the Second Appeal is limited. Section 51 (2) of Consumer Protection Act, 2019 envisage Second Appeal only if it involves substantial question of law. In the memorandum of Appeal, following substantial questions of law have been listed:

> a. Whether the impugned order has been passed against the settled principles of law as laid down by this Hon'ble Commission and Hon'ble Supreme Court of India?
>
> b. Whether the impugned order, counter-productive to the letter and spirit of the provisions of the Consumer Protection Act, 2019 is legally sustainable?
>
> c. Whether the impugned order passed by the State Commission is contrary to the law of estoppel in as much as the Respondent after purchasing the policy cannot raise the allegation of mis-selling of policy?
>
> d. Whether the impugned order passed by the State Commission is contrary to the principles as contemplated under Section 95 of The Bharatiya Sakshya Adhiniyam, 2023?
>
> e. Whether the impugned order passed by the State Commission is contrary to the basic principle relating to evidence and proof i.e. legal maxim "Actori Incumbit Probatio" which means that the claimant must prove the assertion of facts.
>
> f Whether the. impugned order passed by the State Commission is contrary to the judgment passed by this Hon'ble commission in Revision Petition 488 of 2018 decided on 31.05.2024 9- Whether the impugned order passed by the State Commission is against the principles of Free Look period?

13. What constitutes a 'substantial question of law' and how it differs from 'a mere question of law' has been elaborated by the Hon'ble Supreme Court in Chandrabhan (deceased) Through Legal Representatives and Others Vs. Saraswati and Others (2022) 20 SCC 199. In this case, it was observed by the Hon'ble Supreme Court that Second Appeal under Section 100 CPC can only be entertained on a substantial question of law. Existence of substantial question of law is the sine qua non for the exercise of jurisdiction under Section 100 CPC. Similarly, Section 51 (2) of Consumer Protection Act, 2019, Second Appeal lie to the National Commission, if the National Commission is satisfied that the case involves a substantial question of law.

Extract of relevant paras of the judgment of the Hon'ble Supreme Court in Chandrabhan (supra) are reproduced below:

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26. The guidelines to determine what is a substantial question of law within the meaning of Section 100 CPC has been laid down by this Court in Chunnilal V Mehta & Sons v. Century Spinning and Manufacturing Co. Ltd.1962 SCC Online SC 57.

27. In Chunilal \7. Mehta and Sons (supra), this Court agreed with and approved a Full Bench judgment of the Madras High Court in Rimmalapudi Subba Rao v. Noony Veeraju and Ors. 1951 SCC Online Mad 100, which laid down the principles for deciding when a question of law becomes a substantial question of law.

28. In Hero Vinoth v. Seshammal (2006) 5 SCC 545, this Court followed Chunilal v. Mehta & Sons (supra) and other judgments and summarized the tests to find out whether a given set of questions of law were mere questions of law or substantial questions of law.

29. The relevant paragraphs of the judgment of this Court in Hero Vinoth (supra) are set out herein below:

"21. The phrase "substantial question of law", as occurring in the amended Section 100 CPC is not defined in the Code. The word substantial, as qualifying "question of law", means - of having substance, essential, real, of sound worth, important or considerable. It is to be understood as something in contradistinction with - technical, of no substance or consequence, or academic merely. However, it is clear that the legislature has chosen not to qualify the scope of "substantial question of law" by suffixing the words "of general importance" as has been done in many other provisions such as Section 109 of the Code or Article 133(1)(a) of the Constitution. The substantial question of law on which a second appeal shall be heard need not necessarily be a substantial question of law of general importance. In Quran Ditta v.Ram Ditta 1928 SCC Online PC 31 : AIR 1928 PC 172] the phrase "substantial question of law" as it was employed in the last clause of the then existing Section 100 CPC (since omitted by the Amendment Act, 1973) came up for consideration and their Lordships held that it did not mean a substantial question of general importance but a substantial question of law which was involved in the case. In Chunilal case 1962 SCC Online SC 57 : AIR 1962 SC 1314] the Constitution Bench expressed agreement with the following view taken by a Full Bench of the Madras High Court in Rimmalapudi Subba Rao v. Noony Veeraju 1951 SCC Online Mad 100 (Chunilal case, SCC Online SC Para 5) '5. "[W]hen a question of law is fairly arguable, where there is room for difference of opinion on it or where the Court thought it necessary to deal with that question at some length and discuss alternative views, then the question would be a substantial question of law. On the other hand if the question was practically covered by the decision of the highest court or if the general principles to be applied in determining the question are well settled and the only question was of applying those principles to the particular fact of the case it would

> not be a substantial question of law. "

30. The proper test for determining whether a question of law raised in the case is substantial would be, whether it is of general public importance or whether it directly and substantially affects the rights of the parties and if so, whether it is either an open question in the sense that it is not finally settled by this Court. If the question is settled by the highest court or the general principles to be applied in determining the question are well settled and there is a mere question of applying those principles or the question raised is palpably absurd, the question would not be a substantial question of law.

31. To be 'substantial', a question of law must be debatable, not previously settled by law of the land or a binding precedent, and must have a material bearing on the decision of the case, if answered either way, insofar as the rights of the parties before it are concerned. To be a question of law "involving in the case" there must be first, a foundation for it laid in the pleadings and the question should emerge from the sustainable findings of fact arrived at by court of facts and it must be necessary to decide that question of law for a just and proper decision of the case. An entirely new point raised for the first time before the High Court is not a question involved in the case unless it goes to the root of the matter. It will, therefore, depend on the facts and circumstance of each case whether a question of law is a substantial one and involved in the case or not, the paramount overall consideration being the need for striking a judicious balance between the indispensable obligation to do justice at all stages and impelling necessity of avoiding prolongation in the life of any lis. (See Santosh Hazari v. Purushottam Tiwari (2001) 3 SCC 179

32. The principles relating to Section 100 of the CPC relevant for this case may be summarised thus:

> 32.1. An inference of fact from the recitals or contents of a document is a question of fact. But the legal effect of the terms of a document is a question of law. Construction of a document involving the application of any principle of law, is also a question of law. Therefore, when there is misconstruction of a document or wrong application of a principle of law in construing a document, it gives rise to a question of law.
>
> 32.2. The High Court should be satisfied that the case involves a substantial question of law, and not a mere question of law. A question of law having a material bearing on the decision of the case (that is, a question, answer to which affects the rights of parties to the suit) will be a substantial question of law, if it is not covered by any specific provisions of law or settled legal principle emerging from binding precedents and involves a debatable legal issue. A substantial question of law will also arise in a contrary situation, where the legal position is clear, either on account of express provisions of law or binding precedents, but the court below has decided the matter, either ignoring or acting contrary to such legal principle. In the second type of cases, the substantial question of law arises not because the law is still debatable, but because the decision rendered on a material question, violates the settled position of law.

32.3. The general rule is that the High Court will not interfere with findings of facts arrived at by the courts below. But it is not an absolute rule. Some of the well-recognised exceptions are where (i) the courts below have ignored material evidence or acted on no evidence; (ii) the courts have drawn wrong inferences from proved facts by applying the law erroneously; or (Hi) the courts have wrongly cast the burden of proof. When we refer to "decision based on no evidence", it not only refers to cases where there is a total dearth of evidence, but also refers to any case, where the evidence, taken as a whole, is not reasonably capable of supporting the finding"

14. We have carefully perused the impugned orders of the State Commission dated 28.10.2024, 29.10.2024 and 30.10.2024 pertaining to the Second Appeals covered under this order, Order(s) of the District Commission, other relevant records and rival contentions of the parties. No doubt, the insurance contract once signed binds both sides and parties to it, including the insurer and insured, are bound by its terms and conditions. In the present case, it has been clearly established that the policy(ies) in question was / were sold under mis-representation and without explaining its terms and conditions to the insured. No prudent person could have bought such policy(ies) if its contents and terms and conditions were clearly explained to them. State Commission has at length considered the contentions of the Appellant-Insurance Company and have duly addressed the same. State Commission has passed well reasoned order(s) and we are in agreement with its observations and findings and find no reason to interfere with the same. Contentions of the Appellant-Insurance Company that the complainant(s) are not consumers as they have bought the investment plan and not the insurance policy lacks merit. Complainants have taken a specific plea that copy of the policy was not supplied to them immediately or within the free look out period and they came to know about it only when the next year's premium was demanded. Hence, contentions of the Appellant - Insurance Company that complainants are entitled to surrender benefit only subject to fulfilment of the conditions of the policy which has a minimum 2 years period before they r become entitled to surrender value, also lacks merit. There are concurrent findings of both the Fora below regarding deficiency in service and unfair trade practices on the part of the Insurance Company and the fact that the policies were sold under mis-representation. Hence, the insured cannot be bound by the terms and conditions of such policies. After careful consideration of the entire facts and circumstances of the case, we find no error, illegality or material irregularity in the orders of the State Commission. Hence, we uphold the orders of the State Commission dated 28.10.2024, 29.10.2024 and 30.10.2024. Accordingly, all the 25 Second Appeals covered under this order are dismissed.

15. Pending lAs, in all the SAs, if any, also stand disposed off.

Sd/-

☐(DR. INDER JIT SINGH) PRESIDING MEMBER Sd/-

Am/ (Br/sU^IR KUMAR JAIN, J.)

Annexure -1

SI. No.	SA No.	FA No. before the State Commission	Date of State Commission's order	CC No.	Date of District Commission's order	Complainant's name
1	75/2025	62 /2024	28.10.2024	776/2021	06.10.2023	Rattan Chauhan
2	76/2025	63 /2024	28.10.2024	772/2021	06.10.2023	Rattan Chauhan
3.	77/2025	25/2024	29.10.2024	13/2021	23.10.2023	Vijay Gopal
4.	81/2025	56/2024	28.10.2024	73/2021	06.10.2023	Gian Chand
5.	82/2025	55/2024	28.10.2024	79/2021	06.10.2023	Gian Chand
6.	83/2025	68/2024	28.10.2024	276/2020	06.10.2023	Mandeep Ka
	84/2025	64/2024	28.10.2024	287/2020	06.10.2023	Ashwani Kumar
8.	85/2025	251/2023	30.10.2024	208/2023	07.07.2023	Saroj Goel
9.	86/2025	65/2024	28.10.2024	285/2020	06.10.2023	Ashwani Kumar
10.	88/2025	57/2024	28.10.2024	78/2021	06.10.2023	Gian Chand
11.	89/2025	60/2024	28.10.2024	76/2021	06.10.2023	Gian Chand
12.	90/2025	253/2023	30.10.2024	210/2023	07.07.2023	Saroj Goel
13.	91/2025	61/2024	28.10.2024	773/2021	06.10.2023	Rattan Chauhan
14.	92/2025	252/2023	30.10.2024	209/2023	07.07.2023	Saroj Goel
15.	93/2025	24/2024	29.10.2024	11/2021	23.10.2023	Vijay Gopal
16.	94/2025	23/2024	29.10.2024	10/2021	23.10.2023	Vijay Gopal
	95/2025	59/2024	28.10.2024	74/2021	06.10.2023	Gian Chand
18.	96/2025	66/2024	28.10.2024	72/2021	06.10.2023	Usha Rani
19.	97/2025	69/2024	28.10.2024	277/2020	06.10.2023	Avneet Kaur
20.	99/2025	19/2024	29.10.2024	06/2021	23.10.2023	Vijay Gopal

21.	100/2025	22/2024	29.10.2024	09/2021	23.10.2023	Vijay Gopal
22.	101/2025	20/2024	29.10.2024	07/2021	23.10.2023	Vijay G
23.	102/2025	67/2024	28.10.2024	.32/2021	06.10.2023	Bal Sharma__
24.	103/2025	21/2024	29.10.2024	08/2021	23.10.2023	Vijay Go
25.	106/2025	58/2024	28.10.2024	77/2021	06.10.2023	Gian Cha

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